

NAPCS Unionization Research — State — Charter Sector Overview

Hawaii — HLRB (HI) Jurisdiction — May 2026

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Section 1: State Overview

State	Hawaii
Labor Board	HLRB (HI) — Hawaii Labor Relations Board
Governing Law	Hawaii Revised Statutes Chapter 89 (Collective Bargaining in Public Employment); HRS §89-10.55 (Charter School Collective Bargaining); HRS Chapter 302D (Charter Schools Act); HRS §302B (Public Charter Schools)
Federal NLRB Jurisdiction	HLRB (HI) has exclusive jurisdiction. Federal NLRB does not apply.
Right-to-Work	NOT a Right-to-Work State — HRS Art. XIII §2; HRS Ch. 89 (Not a right-to-work state. Strong public-sector bargaining rights under HRS Chapter 89.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	YES — HRS Chapter 89 permits majority card-check recognition for public employees. In practice, HSTA BU05 is established by statute and HLRB order — no individual school card-check petition is needed or applicable.
Registry Sweep	COMPLETE — May 2026 (Registry v60) — 37 charter schools searched
Research Window	May 2026

Section 2: Charter Sector Landscape

Total charter schools in Hawaii: 37 (Hawaii Public Charter School Commission (HPCSC) — 38 open charter schools statewide as of SY 2025-26 (Kamalani Academy closed June 30 2025; Parkway Village Preschool and Namahana School listed as Future — not yet open). Registry v94 audit June 5, 2026: 37 Open. 2 Future schools excluded (Parkway Village Preschool, Namahana School) + 1 Closed excluded (Kamalani Academy) per census methodology.). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
DEPENDENT (active)	37	100% of active open schools	All 37 open schools are public employers under HRS §89-10.55, covered by HSTA BU05 (teachers) and HGEA/UPW (support staff). Structural coverage — no individual certification event required.
DEPENDENT (CLOSED — within lookback)	1		Kamalani Academy (NCES 150003000303) — charter non-renewed March 13 2025; closed June 30 2025. Within 3-year lookback window. Full record documented with closure flag.
FUTURE (deferred — not yet open)	2		Parkway Village Preschool (NCES 150003000309) and Namahana School (NCES 150003000310) — HPCSC-approved but not yet operational. Deferred from active research dataset pending opening.
TOTAL (Registry)	40	100%	40 schools in Registry v60. Active research dataset: 38 (37 open + 1 closed).

Charter Sector Enrollment

Total Charter Enrollment	12,984 students — 7.8% of state K–12 enrollment (167,071 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	0 students (no CMO/EMO networks identified)
Students in Organized Charter Schools	0 students documented
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

No charter management organizations identified in Hawaii in the Charter School Registry.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of May 2026.

1: Legal & Jurisdictional Framework

Hawaii Revised Statutes Chapter 89 (Collective Bargaining in Public Employment); HRS §89-10.55 (Charter School Collective Bargaining); HRS Chapter 302D (Charter Schools Act); HRS §302B (Public Charter Schools) Hawaii is not a right-to-work state (HRS Art. XIII §2; HRS Ch. 89). HLRB (HI) has exclusive jurisdiction. Federal NLRB does not apply to charter schools in Hawaii. Card-check recognition is available under HRS Chapter 89 permits majority card-check recognition for public employees. In practice, HSTA BU05 is established by statute and HLRB order — no individual school card-check petition is needed or applicable..

2: Charter Sector Structure

Hawaii operates 37 open-enrollment charter schools, enrolling approximately 12,984 students. No multi-campus charter networks are identified in the Charter School Registry for Hawaii. Approximately 37 schools operate independently with no CMO or EMO affiliation.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Media coverage of Hawaii charter school labor relations is sparse — consistent with a structural DEPENDENT state where no independent organizing campaigns occur. Coverage centers on charter accountability, HPCSC oversight, and school closures (Kamalani Academy, Ka'u Learning Academy). The Honolulu Civil Beat provides the most consistent charter school coverage and documented the 2025 Kamalani closure extensively. Hawaii Public Radio (HPR) covered the March 2025 HPCSC non-renewal vote. No press coverage of charter-specific union organizing drives was found.

Stakeholder Communications

HSTA communications reference charter school members as part of BU05. The 2023 settlement summary explicitly flagged "full and proper recognition of public charter schools" as a priority win. HSTA's ratification process included charter school member votes alongside DOE teacher votes — with 92.3% overall approval across 7,721 valid ballots. HGEA and UPW do not produce charter-specific communications, as charter support staff are covered under the same bargaining units as all state employees.

Section 6: Contract & CBA Access Registry

HLRB (HI) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
All Hawaii Charter Schools — Teachers (BU05)	Hawaii State Teachers Association (HSTA)	Active July 1, 2023 – June 30, 2027	Contract: View Contract
All Hawaii Charter Schools — Classified Support Staff (HGEA BUs)	Hawaii Government Employees Association (HGEA), AFSCME Local 152	Active July 1, 2021 – June 30, 2025 (renewal negotiations in progress)	Contract: View Contract